From: Nicholas Scarr <nscarr@quantlogic.com>
To: Simon Fenwick <SFenwick@qlaims.com>
CC: Andy Lyne <Andy.Lyne@qlaims.com>, Louisa Scarr <scarrlouisa@gmail.com>, Claims <Claims@qlaims.com>
Date: Friday 23 January 2026 at 10:24
Subject: Short position paper directly addressing the question of reinstatement vs betterment

Dear Simon,

I have been very mindful not to deluge either yourselves or underwriters with excessive material on the question of betterment. However, as you know, it has consistently been my position that the items in dispute are *required to achieve compliance with the Building Regulations*, and therefore do not constitute betterment.

I fully appreciate that the issue is nuanced, for the reasons we have discussed previously. Nonetheless, given the importance of the point, I felt it appropriate to set out a short and focused position paper which explains, in clear terms, how the Building Regulations apply in this instance.

The attached paper reflects my understanding following exhaustive review of the relevant regulatory framework, together with detailed discussions with our appointed expert, *Adam Clutterbuck*, and the waterproofing contractor, *Maclennan*. It is intended simply to clarify why the inclusion of redundancy, battery backup, and system separation arises from regulatory compliance considerations, rather than discretionary enhancement.

I hope this assists in bringing the outstanding issue into sharper focus, and I would of course be happy to discuss any aspect of the paper if helpful.

Kind regards,
Nicholas

Nicholas Scarr

Attachments (1):
- Building Regulations Position Statement – Pumps & Battery Backup (1).pdf (19,086 bytes)